

MARKETING ANALYTICS SERVICES AGREEMENT

This Services Agreement ("Agreement") is entered into as of May 1, 2026 ("Effective Date") between **PixelPulse Analytics LLC**, a California limited liability company ("Provider"), and **BlueHarbor Retail Group, Inc.**, a Texas corporation ("Client").

1. Services and Deliverables

Provider shall deliver the Marketing Analytics Platform and monthly performance reports as described in Schedule A. Provider shall use **commercially reasonable efforts** to maintain Platform availability of 99.5% measured monthly. Service credits of 5% of the monthly fee apply for each full percentage point below the commitment in any given month, capped at 25% per month.

2. Fees

Client shall pay Provider an annual platform fee of **USD 144,000**, invoiced annually in advance. The annual fee is **non-refundable** except as expressly provided in Section 4 (termination for cause). Provider may increase the annual fee at each renewal by up to **8%** with sixty (60) days' written notice. Late payments accrue interest at 1.25% per month.

3. Term and Renewal

The initial term is two (2) years. The Agreement renews automatically for one-year terms unless either party provides **sixty (60) days' written notice** of non-renewal before the end of the current term. Notice given outside this window is ineffective for the upcoming renewal period.

4. Termination

Either party may terminate for material breach upon thirty (30) days' written notice if the breach remains uncured. Client may terminate for convenience at any time on ninety (90) days' notice; in such case Client shall pay **fifty percent (50%) of the fees that would have accrued through the remainder of the then-current term**. Upon termination for Provider's uncured material breach, Provider shall refund the pro-rata portion of any prepaid fees for unused service.

5. Client Data Ownership and Usage

Client retains all right, title and interest in Client Data. Provider may use Client Data **in anonymised and aggregated form** to improve the Platform, generate industry benchmarks, and produce analytics reports made available to other Provider clients. This limited usage right survives termination of this Agreement **for two (2) years**. Provider shall not use Client Data to train external machine learning models or in any form that could reasonably identify Client.

6. Data Protection

A Data Processing Addendum ("DPA") referencing GDPR and CCPA obligations is attached as Exhibit C. Provider shall notify Client of any confirmed data breach affecting Client Data within **seventy-two (72) hours** of confirmation. Data residency is not specified in this Agreement; Provider may process Client Data in any jurisdiction in which it operates with reasonable security controls.

7. Security

Provider currently maintains SOC 2 Type II compliance. Provider shall use commercially reasonable efforts to maintain this certification throughout the term but does not warrant continuous certification. Provider shall make its most recent SOC 2 report available to Client upon written request.

8. Limitation of Liability

Each party's total aggregate liability under this Agreement is capped at **the fees paid by Client in the six (6) months preceding the claim**. The cap does NOT apply to breaches of confidentiality or to a party's gross negligence or wilful misconduct. Neither party shall be liable for indirect, incidental, special, consequential or punitive damages.

9. IP Indemnification

Provider shall defend and indemnify Client against any third-party claim that the Platform infringes a valid United States patent or copyright, subject to the liability cap in Section 8. Provider has **no obligation** to indemnify if the alleged infringement results from (a) modification of the Platform by anyone other than Provider, (b) combination of the Platform with third-party products not supplied by Provider, or (c) Client's use of the Platform outside the scope of the licence.

10. Data Export on Termination

Upon termination or expiration, Provider shall, upon Client's written request made within thirty (30) days of termination, provide Client Data in CSV format at a **reasonable transition fee not to exceed USD 5,000**. After ninety (90) days from termination Provider shall delete all Client Data.

11. Assignment

Provider may assign this Agreement to any successor in a merger, acquisition or sale of substantially all assets **without Client's consent**. Client may not assign this Agreement without Provider's prior written consent.

12. Governing Law and Disputes

This Agreement shall be governed by the laws of the State of California. Any dispute arising under or in connection with this Agreement shall be resolved by binding arbitration administered by JAMS in San Francisco, California under its commercial arbitration rules. Each party shall bear its own costs.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

PixelPulse Analytics LLC _____

BlueHarbor Retail Group, Inc. _____